

Society for Psychoanalysis and Psychoanalytic Psychology (Division 39)
American Psychological Association

The Society for Psychoanalysis and Psychoanalytic Psychology (SPPP) is a division of the American Psychological Association representing psychologists and allied disciplines concerned with practice, theory, and research in psychoanalysis. SPPP is registering its concerns about the uses of Artificial Intelligence generally and agentic AI in particular. Our concerns fall into the following headings: Patient Safety, Privacy, Clinical Efficacy and Quality, Clear and Enforceable Regulation.

1. Patient Safety

Federal and state governments historically have been responsible for ensuring public safety through regulation of health care products, and regulation of health care clinicians through credentialing and oversight systems. AI application in clinical settings and services should be held to comparable or higher standards in order to ensure the health and wellbeing of patients. Without federal regulation the oversight of AI is left to corporations with financial interests in promoting their products or to myriad and inconsistent state laws to determine how AI is deployed in health care. This will lead to a patchwork of inconsistent standards that likely lead to a decline in public safety. In mental health, we have already seen suicides and other forms of self-injuries by vulnerable people that have been encouraged by unregulated AI applications.

2. Privacy

Psychotherapy requires strict requirements to ensure confidentiality of deeply sensitive and personal information that inevitable arises mental health care. Many AI chatbots that are heavily marketed for mental health support are not subject to HIPAA regulations. There is no regulation of the use of sensitive personal information for marketing or development purposes. Such information is open to data breaches, which may cause serious, irreparable harm to those who use them. Regulations are therefore necessary for AI applications in health care comply with HIPAA regulations at a minimum.

3. Clinical Efficacy

AI applications are liable to make inaccurate outputs that people rely upon to make major decision about their mental health or for others. Corporate standards for use and marketing of their AI products fail to measure their effectiveness adequately. Rigorous

analysis of meaningful health metrics such as patient outcome including sustained symptom remission and recovery, analysis of dropout rates, and a multimodal analysis of measures of improvement in quality of life are necessary to ensure safe and effective use. Scientific standards require that such data be collected and analyzed by qualified, independent evaluators.

4. Clinical Quality

In addition to rigorous analysis of clinical efficacy (above), the therapist-patient relationship has been shown to be the best predictor of treatment outcome. The capacity to develop a deep, meaningful, and thoughtful therapeutic relationship takes careful training. It entails years of study and supervision for a therapist to purposely use themselves to engage patients to deal with painful, sensitive issues, and to create a facilitating partnership that imbues therapy with the hope and courage that is critical for genuine growth to occur.